

HOUSE No. 3998

The Commonwealth of Massachusetts

PRESENTED BY:

Kip A. Diggs and James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to promoting native plantings for stormwater management, pollinator support and climate resilience.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kip A. Diggs</i>	<i>2nd Barnstable</i>	<i>1/16/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>1/16/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/25/2025</i>

HOUSE No. 3998

By Representatives Diggs of Barnstable and Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 3998) of Kip A. Diggs and James C. Arena-DeRosa that the Division of Highways be authorized to establish a program to promote the cultivation and maintenance of native flowering plants, grasses and shrubs on land bordering along state highways and other public lands. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to promoting native plantings for stormwater management, pollinator support and climate resilience.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to address native planting in the commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting, after
2 Section 2JJJJJ, the following section:-

3 Section 2KKKKKK. (a) There shall be established and set up on the books of the
4 commonwealth a separate fund, to be known as the Native Planting Fund. It shall consist of
5 amounts credited to the fund in accordance with this section. The secretary of the Massachusetts
6 Department of Transportation shall be the custodian of the fund.

7 (b) The fund shall consist of: (i) revenue from appropriations or other money authorized
8 by the general court and specifically designated to be credited to the fund; (ii) interest earned on

9 money in the fund; (iii) state and federal grants for green infrastructure projects; and (iv) revenue
10 generated from the sale of a dedicated vanity license plate featuring native pollinator imagery.

11 Amounts credited to the fund shall not be subject to further appropriation and any money
12 remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

13 (c) Money in the fund shall be expended to support the establishment and implementation
14 of the program established in section 33 of chapter 81, including grants to municipalities and
15 partnerships with environmental organizations. Priority funding shall be given to projects
16 demonstrating significant community and environmental benefits in the commonwealth.

17 (d) The Massachusetts Department of Transportation shall annually, not later than
18 December 31, report on the activity of the fund to the: (i) chairs of the joint committee on
19 environment and natural resources; (ii) chairs of the joint committee on transportation; (iii) house
20 and senate committees on ways and means; and (iv) clerks of the house of representatives and
21 senate.

22 SECTION 2. Chapter 81 of the General Laws is hereby amended by adding the following
23 section:-

24 Section 33. (a) The department shall establish a program to promote the cultivation and
25 maintenance of native flowering plants, grasses and shrubs on land bordering along state
26 highways and other public lands. The department shall establish objectives for the program
27 including: (i) incorporating native plantings into green infrastructure solutions, such as rain
28 gardens, bio-swales and permeable landscapes to reduce runoff, filter pollutants and improve
29 water quality; (ii) establishing and enhancing habitats for pollinators, including bees, butterflies
30 and other beneficial insects by prioritizing plant species native to the region; and (iii) utilizing

native vegetation to improve soil health, sequester carbon and reduce the need for emissions-intensive maintenance activities such as mowing and pesticide applications.

(b) The department, in consultation with the department of agricultural resources, the department of environmental protection and relevant environmental organizations, shall: (i) identify and prioritize suitable locations and areas that would benefit from improved stormwater management, reduced maintenance or enhanced biodiversity; (ii) develop standards for selecting and maintaining plant species to ensure their ecological suitability, resilience and effectiveness in achieving the program's goals; (iii) encourage the use of innovative stormwater management techniques that integrate native vegetation; and (iv) coordinate with municipalities, regional planning agencies and environmental groups to implement pilot projects and community-based initiatives.

(c) The department shall to support the program's implementation by establishing: (i) grants to municipalities for designing and installing green infrastructure projects utilizing native plantings; (ii) partnerships with local nurseries and landscapers to supply native plants and support job creation; (iii) public-private partnerships to reduce costs and enhance the program's outreach; and (iv) in consultation with the registry of motor vehicles, a vanity license plate featuring native pollinator imagery, with the proceeds supporting the program's activities and grants to municipalities.

(d) The department shall promote community engagement and education by: (i) developing and disseminating educational materials about the environmental, economic and health benefits of native plantings and stormwater management; (ii) encouraging citizen involvement through volunteer programs, local workshops and monitoring initiatives; and (iii)

53 collaborating with school and community organizations to promote environmental stewardship
54 and awareness.

55 (e) The department shall establish measurable goals and metrics to assess the program's
56 effectiveness, including: (i) the reduction in stormwater runoff and improvement in water
57 quality; (ii) increases in pollinator populations and biodiversity; (iii) cost savings in maintenance
58 and operations; and (iv) annual reporting to the general public and the legislature on the
59 program's progress.

60 (f) The department shall, pursuant to chapter 30A, promulgate rules and regulations to
61 carry out the purposes of this section within 1 year of its effective date.